

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:00 1	19CV357918	Bank of America vs. Sunshine Roybal	Defendant moves this court to set aside default judgment claiming improper service. Default judgment was entered 18 years ago. Defendant's motion is not timely. Motion is DENIED.
9:00 2	24CV453375	Wells Fargo Bank vs. Mahan	Plaintiff moves this court to enter a judgment against defendant. Defendant filed no objection to Plaintiff's motion. Plaintiff and defendant entered into a valid contract, Plaintiff performed the contract by extending credit to the defendant, the defendant breached that contract by not paying, and Plaintiff suffered damages as a result. Plaintiff's motion is GRANTED.
9:00 3	25CV462132	Silviera, et.al. v. Khan, et.al.	Plaintiff moves this court for leave to file an amended complaint. Defendant filed no opposition to Plaintiff's motion. Plaintiff's motion is GRANTED.
9:00 4	25CV467505	Avatar Singh vs. America Honda Motor Company	Plaintiff petitions this court to compel further production of documents from Defendant. This court finds that RFP No. 7 is relevant and has been provided by defendant. This court finds that RFP No. 16 is also relevant and orders defendant to produce documents. This court finds that RFP No. 17-26 requesting ESI regarding electrical and body defects is relevant and orders Defendant to provide such documents. This court finds that RFP No. 43-45 are overbroad and Plaintiffs request is denied. This court finds that RFP No. 46-47 related to call center scripts for customer service agents regarding electrical or defect of subject vehicle is relevant. This court finds that RFP No. 53 for customer service organizational charts is overbroad. This court finds that RFP No., 75 asking for documents related to technical service bulletin is relevant. This court therefore GRANTS Plaintiff's petition to compel for RFP No. 16, 17-16, 46-47, and 75. This court DENIES Plaintiff's petition to compel RFP No. 7, 43-45, and 53.
9:00 5-6	25CV483263	Bank of America vs. Juniel	See below.
9:00 7	25CV470890	Midland Credit Management vs. Fitch	Defendant moves this court to quash service of Plaintiff's complaint. Plaintiff was served through substitute service at his house. Plaintiff made several attempts to serve Defendant personally. Defendant filed statement with several witnesses indicating no one was at home. Defendant's evidence is insufficient to rebut the presumption of valid service. Defendant's motion is DENIED.
9:01 1	19CV344261	George Veloria et.al. vs Ferdinand Adona	Plaintiff moves this court for relief from court's dismissal of case without prejudice. Plaintiff's case was dismissed when both parties failed to appear at last court proceeding. Plaintiff's attorney explained the problem as a mistake or inadvertence as he never received notice of date. Plaintiff's motion is GRANTED.
9:00 2-3	25CV457721	Geovanni Chisolm vs. Ken Nguyen	Both minors Geovanni Chisolm and Noelani Bluehorse compromise claims are APPROVED.
9:01 4	25CV462132	Eugene Silveria Trustee vs. Khan, Mo et.al.	Defendant Khan's attorney moves this court to allow him to be relieved as counsel. Defendant's attorney's motion to withdraw is GRANTED.

Calendar Line 6

Case Name: Bank of America, N.A. v. Christopher Juniel

Case No.: 25CV483263

This action arises from the breach of a Credit Card Agreement (Agreement). Plaintiff Bank of America, N.A. (Plaintiff) alleges Defendant Christopher Juniel (Defendant) defaulted on the Agreement by failing to make timely payments. “Because the Defendant was in default under the Agreement, Plaintiff declared Defendant’s entire account balance of \$8861.67 immediately due and payable. Defendant continues to fail to pay Plaintiff for all amounts due.” (Complaint at p. 3.) Plaintiff sues Defendant for breach of contract.

Defendant moves to compel arbitration of this action based on an arbitration provision he contends is in the Credit Card Agreement. Plaintiff has not opposed this motion. Having reviewed the arbitration provision, the court grants the motion and stays this action pending the outcome of arbitration.

LEGAL STANDARD

The arbitration provision states, “[t]he arbitration of any matter involves interstate commerce and is governed by the Federal Arbitration Act, 9 U.S.C. §§ 1 et seq. (the ‘FAA’).” Under the FAA, the court’s role is limited to determining “(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue.” (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130.) To determine “whether a valid contract to arbitrate exists,” courts apply “ordinary state law principles that govern contract formation.” (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170.)

Code of Civil Procedure section 1281.2 provides: “On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate such controversy, the court shall order the petitioner and respondent to arbitrate the controversy if it determines that an agreement to arbitrate the